

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JULIO REYES,

Plaintiff,

Index No.: /2019

-against-

SUMMONS

CITY OF NEW YORK, P.O. MARCUS RIVERA,
Shield No. 9588, P.O. ANTHONY VARRONE, Shield
No. 15385, and JOHN DOES/JANE ROES, 1-5,

The basis of venue is
CPLR 503(a) and 504(3)

Defendants.
-----X

To the above named Defendants:

Police Officer Anthony Varrone
c/o 75th Precinct
1000 Sutter Avenue
Brooklyn, NY 11208

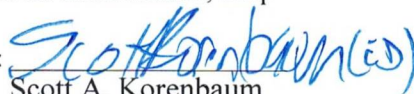
City of New York
c/o New York City Law Department
100 Church Street
New York, NY 10007

Police Officer Marcus Rivera
New York City Police Department
One Police Plaza
New York, NY 10038

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
October 3, 2019

Scott A. Korenbaum, Esq.

BY: 

Scott A. Korenbaum
11 Park Place, Suite 914
New York, NY 10007
212-587-0018

Law Offices of Eric Dinnocenzo

BY: 

ERIC DINNOCENZO
Attorney for Plaintiffs
469 Seventh Avenue, Suite 1215
New York, NY 10018
212-933-1675

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JULIO REYES,

Plaintiff,

-against-

CITY OF NEW YORK, P.O. MARCUS RIVERA,
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Defendants.
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COMPLAINT

Index No.

Julio Reyes, by his attorneys, Scott A. Korenbaum, Esq., and Law Offices of Eric Dinnocenzo, for his Complaint, alleges as follows:

INTRODUCTION

1. Plaintiff Julio Reyes brings this action to recover damages caused him by the individual defendants' commission of a battery against him, and their subsequent fabrication of evidence.

2. More specifically, during the early morning hours of July 15, 2018, defendants committed a battery during the course of their arrest of Mr. Reyes. Thereafter, defendants Rivera and Varrone falsely accused him of attacking Rivera.

PARTIES AND JURISDICTION

3. Mr. Reyes was and remains a citizen of the State of New York, County of Queens.

4. Defendant Police Officer Marcus Rivera, Shield No. 9588, was, at all times relevant herein, a member of the New York City Police Department ("NYPD"). Upon information and belief, at all times relevant herein he was assigned to the 75th Precinct.

5. Upon information and belief, defendant Rivera is still a member of the NYPD. At

all times relevant herein, he was acting within the scope of his employment and under color of law.

6. Defendant Police Officer Anthony Varrone, Shield No. 15385, was, at all times relevant herein, a member of the New York City Police Department ("NYPD"). Upon information and belief, at all times relevant herein, he was assigned to the 75th Precinct.

7. Upon information and belief, defendant Varrone is still a member of the NYPD. At all times relevant herein, he was acting within the scope of his employment and under color of law.

8. Defendant police officers John Does/Jane Roes 1-5, shield nos. unknown, were, upon information and belief, members of the NYPD. Upon further information and belief, at all times relevant herein, they were assigned to the 75th Precinct.

9. At all times relevant herein, police officers John Does/Jane Roes were acting within the scope of their employment and under color of law.

10. Defendant City of New York is a municipal corporation organized pursuant to the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. At all times relevant herein, it was the employer of the individually named defendants.

ADMINISTRATIVE PREREQUISITES

11. On October 10, 2018, Mr. Reyes filed a timely Notice of Claim with defendant City via the Office of the City Comptroller, in accordance with the General Municipal Law, concerning his arrest and use of force.

12. On October 2, 2019, Mr. Reyes appeared for a hearing, pursuant to General Municipal Law § 50-h.

13. At least thirty days have elapsed since Mr. Reyes filed his Notice of Claim and

adjustment or payment thereof has been neglected or refused. This action was commenced within one year and 90 days from the date of the occurrences alleged therein, as required under Section 50-I of the General Municipal Law.

STATEMENT OF FACTS

14. On July 14-15, 2018, Mr. Reyes and his brother, among others, attended a birthday party in the vicinity of 255 Pennsylvania Avenue, in Brooklyn. As the party carried over to the early morning hours of July 15th, the police were called as a result of events unrelated to Mr. Reyes.

15. Members of the 75th precinct, including defendants Rivera and Varrone, responded. Mr. Reyes was sitting in the passenger seat of a car at the time the police arrived. His girlfriend was in the driver's seat.

16. As members of the Department spoke with his brother, defendant Rivera encountered Mr. Reyes, who was still sitting in the car.

17. As Reyes and Rivera spoke with one another, Reyes ignored Rivera's directive not to get out of the car. Ultimately, Rivera began to punch Reyes about the face and head without any justification.

18. Thereafter, the remaining defendants began to punch and kick Reyes about his body, including his head. Rivera, for his part, deployed his taser. Again, Reyes did not engage in any behavior warring the officers' use of force.

19. Following Reyes' arrest, Rivera and Varrone falsely accused Reyes of assaulting Rivera. In an accusatory instrument signed by Varrone based upon information supplied by Rivera, they claimed Reyes punched Rivera with a closed fist about his face, and bit Rivera's knee, which caused the skin to break.

20. As a result of Rivera's and Varrone's lies, the arraignment judge set bail in the amount of \$15,000, which Reyes could not make. But for Rivera's and Varrone's lies, Reyes would have been charged only with Harassment, which is a violation.

21. Approximately two days later, Reyes posted bail.

22. Following Reyes' arraignment, Varrone and Rivera repeated their lies before the grand jury. In particular, Rivera claimed that Reyes repeatedly punched him in the face.

23. The grand jury returned a true bill, which accused Reyes of Assault in the Second Degree (Penal Law § 120.05(3)), a D Felony, among other things.

24. Varrone's and Rivera's false claims subjected Reyes to a minimum term of imprisonment of seven (7) years if he were convicted of the Second Degree Assault claim because of Reyes' criminal history.

25. On August 8, 2019, Reyes pleaded guilty to Obstruction of Governmental Administration, an A-misdemeanor, and a conditional discharge.

FOR A FIRST CAUSE OF ACTION
(Battery)

26. Julio Reyes repeats and realleges the allegations contained in paragraphs 1 through 25 above, as if set forth fully herein.

27. On July 15, 2018, Rivera, Varrone and Does/Roes 1-5 intentionally and without legal justification struck Reyes in a harmful and offensive manner.

28. Reyes did not consent or authorize the individual defendants to touch him this way.

29. The individual defendants were agents of defendant City and were at all relevant times acting within the scope of their employment.

30. As a result of these defendants' conduct, Reyes suffered physical and psychological injury, and continues to suffer psychological injury.

31. As the employer of the individual defendants, the City is responsible for the injuries Mr. Reyes suffered, and continues to suffer, as a result of these officers' conduct pursuant to the doctrine of *respondeat superior*.

SECOND CLAIM FOR RELIEF
(42 U.S.C. § 1983—Excessive Force)

32. Julio Reyes repeats and realleges the allegations contained in paragraphs 1 through 31, as if fully set forth herein.

33. On July 15, 2018, Rivera, Varrone and Does/Roes 1-5 were involved in the arrest of Reyes.

34. In effectuating his arrest, these defendants used more force than was necessary.

35. As Reyes' behavior provided no justification for the individual defendants' conduct, their actions were unreasonable within the meaning of the Fourth and Fourteenth Amendments to the United States Constitution.

36. As a result of the individual defendants' conduct, Reyes suffered physical and psychological injury, and continues to suffer psychological injury.

THIRD CLAIM FOR RELIEF
(42 U.S.C. § 1983—Fabrication of Evidence)

37. Julio Reyes repeats and realleges the allegations contained in paragraphs 1 through 36, as if fully set forth herein.

38. Rivera and Varrone created false evidence against Reyes.

39. Rivera and Varrone forwarded false evidence and false information to prosecutors

in the Kings County District Attorney's Office.

40. Specifically, Rivera and Varrone falsely told the prosecutors that Reyes repeatedly punched Rivera about his face, and bit his knee, which caused his skin to break.

41. In creating false evidence against Reyes and forwarding it to prosecutors, Rivera and Varrone violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Sixth and/or Fourteenth Amendments to the United States Constitution.

42. As a result of the foregoing, Reyes sustained, among other things, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

WHEREFORE, Mr. Reyes demands judgment as follows:

- (a) Compensatory damages in an amount to be determined at trial;
- (b) Punitive damages in an amount to be determined at trial;
- (c) the costs and expenses of this action, including reasonable attorneys' fees; and
- (e) such other and further relief as is just and proper.

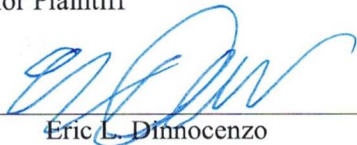
Dated: October 3, 2019
New York, New York

SCOTT A. KORENBAUM, ESQ.
11 Park Place, Suite 914
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(212) 587-0018

LAW OFFICES OF ERIC L. DINNOCENZO
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New York, NY 10018
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Attorneys for Plaintiff

By: _____


Eric L. Dinnocenzo

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SUMMONS AND COMPLAINT

Law Offices of Eric Dinnocenzo
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I certify that the contentions contained herein are not frivolous pursuant to the Rules of the
Chief Administrator as defined in 22 NYCRR § 130-1.1-a.



Eric Dinnocenzo, Esq.